

# Indian Constitution

A module-wise digital textbook built directly from Course Code 6002. It covers constitutional evolution, the Preamble, rights and duties, organs of government, local self-government, constitutional/statutory bodies, RTI and RTE, with short Malayalam support notes throughout.

COURSE CODE  
**6002**

COURSE TITLE  
**Indian Constitution**

SEMESTER  
**6**

CREDITS  
**No Credit**

CATEGORY  
**Common Course**

PERIODS / WEEK  
**2 (L:2, T:0, P:0)**

PERIODS / SEMESTER  
**30**

COGNITIVE LEVEL  
**Remembering / Understanding**

# 30

## Total periods

Four course outcomes, fourteen syllabus units and two series-test periods.

### COURSE PURPOSE

## What this course develops

### Constitutional awareness

Understand the history, basic values, structure and important features of the Constitution of India.

ഇന്ത്യൻ ഭരണഘടനയുടെ ചരിത്രം, അടിസ്ഥാന മൂല്യങ്ങൾ, ഘടന, പ്രധാന സവിശേഷതകൾ എന്നിവ മനസ്സിലാക്കുക.

## Responsible citizenship

Relate Fundamental Rights, Directive Principles of State Policy and Fundamental Duties to responsible citizenship.

Fundamental Rights, DPSP, Fundamental Duties എന്നിവ ഉത്തരവാദിത്വമുള്ള പൗരജീവിതവുമായി ബന്ധപ്പെടുത്തി പഠിക്കുക.

## Government institutions

Recognise the roles of Legislature, Executive and Judiciary at Union and State levels.

Union, State തലങ്ങളിലെ Legislature, Executive, Judiciary എന്നീ മൂന്ന് ഭരണഘടകങ്ങളുടെ പങ്ക് തിരിച്ചറിയുക.

## Local democracy

Understand Panchayat Raj, Nagarapalika institutions and the 73rd and 74th Amendments.

Panchayat Raj, Nagarapalika സ്ഥാപനങ്ങൾ, 73-ാം, 74-ാം ഭേദഗതികൾ എന്നിവയുടെ പ്രാധാന്യം പഠിക്കുക.

## Public bodies

Identify how the Election Commission, NHRC and Lok Ayukta influence public life.

Election Commission, NHRC, Lok Ayukta തുടങ്ങിയ സ്ഥാപനങ്ങൾ പൊതുജീവിതത്തെ എങ്ങനെ സ്വാധീനിക്കുന്നു എന്ന് മനസ്സിലാക്കുക.

## Citizen-facing laws

Know the purpose of the Right to Information Act 2005 and Right to Education Act 2009.

RTI Act 2005, RTE Act 2009 എന്നിവയുടെ ലക്ഷ്യവും പൗരന്മാർക്കുള്ള പ്രയോജനവും മനസ്സിലാക്കുക.

### SYLLABUS STRUCTURE

## Module and course-outcome map

The module hours total 28. Two additional series-test periods make the semester total 30.

|                |                  |
|----------------|------------------|
| CO1 / Module 1 | 8 hours          |
| CO2 / Module 2 | 5 hours + Test I |
| CO3 / Module 3 | 9 hours          |
| CO4 / Module 4 | 6 hours + Test   |

| CO  | Outcome                                                                                      | Duration | Cognitive Level |
|-----|----------------------------------------------------------------------------------------------|----------|-----------------|
| CO1 | Describe the evolution and spirit of the Constitution and its basic principles.              | 8 hours  | Understanding   |
| CO2 | Summarize the rights and duties of a responsible citizen.                                    | 5 hours  | Understanding   |
| CO3 | Outline the various organs of government and their powers and functions.                     | 9 hours  | Understanding   |
| CO4 | Assimilate how constitutional and statutory bodies influence the everyday life of a citizen. | 6 hours  | Understanding   |

**Prerequisite:** Secondary-school Social Science. The syllabus maps all four course outcomes moderately to PO5.

CO1 • 8 HOURS

## Module 1 — Evolution, Preamble and Salient Features

Describe the evolution and spirit of the Constitution and its basic principles.

|                                                                 |                                                                        |
|-----------------------------------------------------------------|------------------------------------------------------------------------|
| <b>1909</b><br>Constitutional reform listed in the syllabus.    | <b>1919</b><br>Further development of representative government.       |
| <b>1935</b><br>Major pre-Constitution administrative framework. | <b>1947</b><br>Indian Independence Act and transition to independence. |

M1.012 hours • Remembering

## Constitution — definition and significance

A Constitution is the supreme framework of rules and principles that establishes government institutions, distributes powers, limits public authority and protects the relationship between the State and citizens. Its significance lies in providing legitimacy, stability, accountability and a common standard for governance.

**മലയാളം സഹായക്കുറിപ്പ്:** ഭരണഘടന ഒരു രാജ്യത്തിന്റെ പരമോന്നത നിയമചട്ടക്കൂടാണ്. സർക്കാർ സ്ഥാപനങ്ങളുടെ ഘടന, അധികാരവിതരണം, അധികാരപരിധി, പൗരന്മാരുടെ സംരക്ഷണം എന്നിവ ഇതിലൂടെ നിശ്ചയിക്കപ്പെടുന്നു.

M1.02

2 hours • Remembering

## Evolution of the Indian Constitution

The syllabus traces constitutional evolution through the reforms of 1909, 1919 and 1935, followed by the Indian Independence Act 1947. Together, these stages show the gradual movement from colonial administration toward representative institutions and independent constitutional government.

**മലയാളം സഹായക്കുറിപ്പ്:** 1909, 1919, 1935 നിയമപരിഷ്കാരങ്ങളും 1947-ലെ Indian Independence Act-ഉം ഇന്ത്യയുടെ ഭരണഘടനാ വികാസത്തിലെ പ്രധാന ഘട്ടങ്ങളാണ്. കോളനി ഭരണത്തിൽ നിന്ന് സ്വതന്ത്ര ഭരണത്തിലേക്കുള്ള മാറ്റം ഇവ വ്യക്തമാക്കുന്നു.

- 1 Remember the four years in order: 1909 → 1919 → 1935 → 1947.
- 2 Explain each as a stage in constitutional and representative development.
- 3 Conclude with the transition to an independent constitutional system.

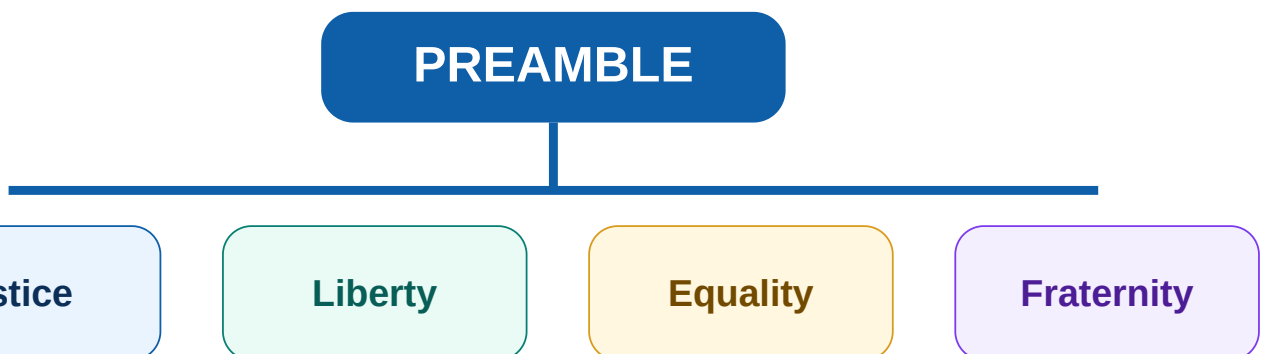
M1.03

2 hours • Understanding

## Preamble, basic principles and basic-structure debate

The Preamble introduces the source, nature, objectives and guiding values of the Constitution. Its core values are Justice, Liberty, Equality and Fraternity. The basic-structure idea means that constitutional amendment cannot destroy the Constitution's essential identity and foundational principles.

**മലയാളം സഹായക്കുറിപ്പ്:** Preamble ഭരണഘടനയുടെ ലക്ഷ്യവും ആത്മാവും വ്യക്തമാക്കുന്നു. Justice, Liberty, Equality, Fraternity എന്നിവയാണ് പ്രധാന മൂല്യങ്ങൾ. ഭേദഗതി ചെയ്യുമ്പോഴും ഭരണഘടനയുടെ അടിസ്ഥാന സ്വഭാവം നശിപ്പിക്കരുത് എന്നതാണ് basic structure ആശയം.



M1.04

2 hours • Understanding

# Salient features of the Indian Constitution

Course 6002

- ✓ Written and detailed Constitution.
- ✓ Combination of rigidity and flexibility in amendment.
- ✓ Bicameral Legislature at the Union level.
- ✓ Federal distribution of powers with unitary features.
- ✓ Integrated judicial system.
- ✓ Single citizenship.
- ✓ Emergency provisions.

**മലയാളം സഹായക്കുറിപ്പ്:** ഇന്ത്യൻ ഭരണഘടന എഴുതപ്പെട്ടതും വിശദവുമായതാണ്. Federal-ഉം unitary-ഉം സവിശേഷതകൾ ചേർന്നിരിക്കുന്നു. Integrated judiciary, single citizenship, bicameral legislature, emergency provisions എന്നിവ പ്രധാന പ്രത്യേകതകളാണ്.

**Module 1 answer pattern:** Begin with a definition, arrange the historical stages in order, identify the Preamble values, and finish with a classified list of salient features.

CO2 • 5 HOURS + SERIES TEST I

## Module 2 — Fundamental Rights, DPSP and Fundamental Duties

Summarize the rights and duties of a responsible citizen.

M2.01 2 hours • Understanding

### Part III — Fundamental Rights, Articles 12 to 35

Fundamental Rights protect individual freedom, equality and dignity. They are enforceable through courts. For study, group them into six broad classes.

| Class 002                        | Articles | Core idea                                                                          | Malayalam memory line                     |
|----------------------------------|----------|------------------------------------------------------------------------------------|-------------------------------------------|
| Right to Equality                | 14–18    | Equality before law and removal of prohibited inequalities.                        | നിയമത്തിനു മുമ്പിൽ സമത്വം.                |
| Right to Freedom                 | 19–22    | Basic civil freedoms and safeguards relating to life, liberty and arrest.          | സ്വാതന്ത്ര്യവും വ്യക്തിസുരക്ഷയും.         |
| Right against Exploitation       | 23–24    | Protection against trafficking, forced labour and child labour in prohibited work. | ചൂഷണത്തിനെതിരായ സംരക്ഷണം.                 |
| Right to Freedom of Religion     | 25–28    | Freedom of conscience and religious practice subject to constitutional limits.     | മതവിശ്വാസ സ്വാതന്ത്ര്യം.                  |
| Cultural and Educational Rights  | 29–30    | Protection of language, culture and minority educational interests.                | ഭാഷ, സംസ്കാരം, വിദ്യാഭ്യാസ അവകാശങ്ങൾ.     |
| Right to Constitutional Remedies | 32       | Approach the Supreme Court for enforcement of Fundamental Rights.                  | അവകാശ സംരക്ഷണത്തിനായി കോടതിയെ സമീപിക്കുക. |

**മലയാളം സഹായക്കുറിപ്പ്:** Fundamental Rights കോടതിയിലൂടെ നടപ്പാക്കാവുന്ന അവകാശങ്ങളാണ്. Articles 12–35 Part III-ൽ ഉൾപ്പെടുന്നു. പരീക്ഷയിൽ ആറു വിഭാഗങ്ങളും ബന്ധപ്പെട്ട Article range-ഉം ക്രമത്തിൽ എഴുതുക.

## M2.02

1 hour • Understanding

## Part IV — Directive Principles of State Policy

DPSP are constitutional directions to the State for building a just social order and guiding public policy. They are not directly enforceable by courts, but they are fundamental to governance and law-making.

**മലയാളം സഹായക്കുറിപ്പ്:** DPSP സർക്കാർ നയങ്ങൾ രൂപപ്പെടുത്താനുള്ള ഭരണഘടനാപരമായ മാർഗനിർദ്ദേശങ്ങളാണ്. ഇവ നേരിട്ട് കോടതിയിൽ enforce ചെയ്യാൻ കഴിയില്ലെങ്കിലും നല്ല ഭരണത്തിന് അടിസ്ഥാനമാണ്.

## M2.03

1 hour • Understanding

## Part IVA — Fundamental Duties, Article 51A

Fundamental Duties remind every citizen to respect the Constitution and national symbols, preserve unity, promote harmony, protect the environment, develop scientific temper, safeguard public property, strive for excellence and support education of children as constitutionally required.

**മലയാളം സഹായക്കുറിപ്പ്:** Fundamental Duties പൗരന്മാരുടെ ഉത്തരവാദിത്വങ്ങളാണ്. ഭരണഘടനയെ മാനിക്കുക, ഐക്യം സംരക്ഷിക്കുക, പരിസ്ഥിതി കാക്കുക, ശാസ്ത്രീയ മനോഭാവം വളർത്തുക, പൊതുസമ്പത്ത് സംരക്ഷിക്കുക എന്നിവ പ്രധാനമാണ്.

## M2.04

1 hour • Understanding

# Comparison — Fundamental Rights and DPSP

Course 0002

| Point          | Fundamental Rights                                                                                        | Directive Principles                     |
|----------------|-----------------------------------------------------------------------------------------------------------|------------------------------------------|
| Location       | Part III                                                                                                  | Part IV                                  |
| Main focus     | Individual freedom, equality and protection.                                                              | Social and economic goals of the State.  |
| Enforceability | Enforceable through courts.                                                                               | Not directly enforceable through courts. |
| Nature         | Legal guarantees to citizens/persons as applicable.                                                       | Guidelines for policy and legislation.   |
| Relationship   | Both should be understood together: rights protect freedom while DPSP guides welfare-oriented governance. |                                          |

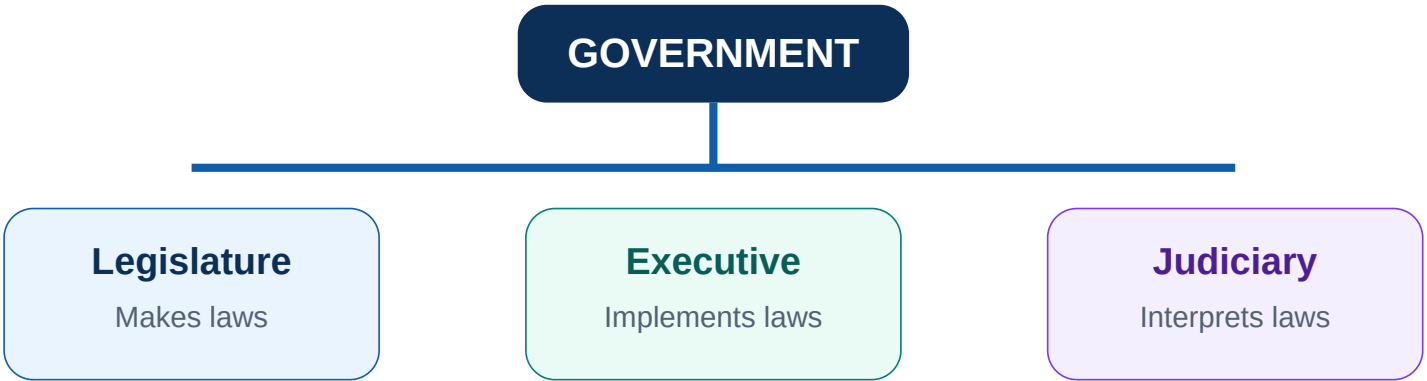
**മലയാളം ഓർമ്മവരി:** Fundamental Rights = court-enforceable rights; DPSP = State policy guidance; Fundamental Duties = citizen responsibilities.

**Series Test I focus:** Article ranges, six classifications of Fundamental Rights, meaning of DPSP, Article 51A and the Rights–DPSP comparison.

CO3 • 9 HOURS

## Module 3 — Legislature, Executive and Judiciary

Outline the organs of government and their powers and functions.



M3.01

3 hours • Understanding

### Legislature — Union Parliament and State Legislature

#### Lok Sabha

Polytechnic Study Hub  
House of the People. It represents the people directly and performs legislative, financial and accountability functions.

ഇങ്ങനെ നേരിട്ട് പ്രതിനിധീകരിക്കുന്ന സഭ. നിയമനിർമ്മാണം, ധനകാര്യ നിയന്ത്രണം, Executive-ന്റെ ഉത്തരവാദിത്വം ഉറപ്പാക്കൽ എന്നിവ പ്രധാനമാണ്.

## Rajya Sabha

Council of States. It represents the States and participates in Union law-making and constitutional functions.

States-നെ പ്രതിനിധീകരിക്കുന്ന സഭ. Union law-making-ൽ പങ്കാളിയാകുന്നു.

## Speaker

Presides over the Lok Sabha, maintains order, regulates proceedings and protects the authority of the House.

Lok Sabha നടപടികൾ നിയന്ത്രിക്കുകയും സഭയിലെ ക്രമവും അധികാരവും സംരക്ഷിക്കുകയും ചെയ്യുന്നു.

**State Legislature:** The syllabus includes the Legislative Assembly and, where applicable, the Legislative Council. Their core functions are State law-making, financial approval and accountability of the State Executive.

## Executive — Union and State

| Level | Office / Institution                    | Main constitutional role                                                                                              |
|-------|-----------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| Union | President                               | Constitutional head of the Union; performs functions according to the constitutional system.                          |
| Union | Vice-President                          | Constitutional office with duties including the Rajya Sabha role.                                                     |
| Union | Prime Minister and Council of Ministers | Real executive leadership, policy direction and administration; collectively responsible in the parliamentary system. |
| State | Governor                                | Constitutional head of the State.                                                                                     |
| State | Chief Minister and Council of Ministers | Real executive leadership and administration at State level.                                                          |

**മലയാളം സഹായക്കുറിപ്പ്:** Union level-ൽ President constitutional head; Prime Minister and Council of Ministers യഥാർത്ഥ ഭരണനേതൃത്വം വഹിക്കുന്നു. State level-ൽ Governor constitutional head; Chief Minister and Council of Ministers ഭരണനേതൃത്വം വഹിക്കുന്നു.



## Judiciary — Supreme Court, High Court, Judicial Review and Independence

### Supreme Court

Highest court in the integrated judicial system, constitutional guardian and final judicial authority within its jurisdiction.

### High Court

Highest court at the State level, exercising constitutional and appellate functions within its jurisdiction.

### Judicial Review

Power of courts to examine whether laws and executive actions conform to the Constitution.

**Independence of Judiciary:** Judicial decisions must be free from improper pressure so that the Constitution, rights and rule of law are protected impartially.

**മലയാളം സഹായക്കുറിപ്പ്:** Judiciary നിയമങ്ങളെ വ്യാഖ്യാനിക്കുകയും ഭരണഘടനാ വിരുദ്ധമായ നിയമ/Executive നടപടികൾ പരിശോധിക്കുകയും ചെയ്യുന്നു. Judicial independence നിഷ്പക്ഷമായ നീതിന്യായത്തിനാവശ്യമാണ്.

**High-score comparison:** Legislature makes law, Executive administers and implements law, Judiciary interprets law and tests constitutional validity.

## CO4 • 6 HOURS + SERIES TEST

## Module 4 — Local Self-Government, Public Bodies, RTI and RTE

Understand how institutions and citizen-facing laws influence everyday life.

## Local Self-Government — 73rd and 74th Amendments

### 73rd Amendment — Panchayat Raj

Strengthens rural local self-government and democratic participation through Panchayat institutions.

## 74th Amendment — Nagarapalika

Strengthens urban local self-government through municipal institutions.

നഗരപ്രദേശങ്ങളിലെ municipalities / Nagarapalika സ്ഥാപനങ്ങളെ ശക്തിപ്പെടുത്തുന്ന മാറ്റമാണ് 74th Amendment.

### LOCAL SELF-GOVERNMENT

#### Rural

Panchayat Raj • 73rd

#### Urban

Nagarapalika • 74th

M4.02

2 hours • Understanding

## Constitutional and Statutory Bodies

| Body                             | Type                  | Everyday significance                                                                                 | Malayalam note                                                      |
|----------------------------------|-----------------------|-------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------|
| Election Commission              | Constitutional body   | Administers and safeguards the electoral process.                                                     | തിരഞ്ഞെടുപ്പ് നടപടികളുടെ സ്വതന്ത്രവും ക്രമബദ്ധവുമായ നടത്തിപ്പ്.     |
| National Human Rights Commission | Statutory body        | Promotes and protects human-rights concerns within its legal mandate.                                 | മനുഷ്യാവകാശ സംരക്ഷണവുമായി ബന്ധപ്പെട്ട വിഷയങ്ങളിൽ ഇടപെടുന്നു.        |
| Lok Ayukta                       | Statutory institution | Addresses complaints concerning public administration and corruption according to the applicable law. | പൊതു ഭരണത്തിലെ പരാതികളും അഴിമതി ആരോപണങ്ങളും പരിശോധിക്കുന്ന സ്ഥാപനം. |

**ഓർമ്മവരി:** Constitution creates a constitutional body; an Act of the legislature creates a statutory body.

M4.03

2 hours • Understanding

# Right to Information Act 2005

Course 6002

RTI supports transparency and accountability by enabling citizens to seek information from public authorities according to the Act.

**മലയാളം സഹായക്കുറിപ്പ്:** RTI Act സർക്കാർ/പൊതു അധികാരികളിൽ നിന്ന് നിയമാനുസൃതമായി വിവരങ്ങൾ തേടാൻ പൗരന്മാരെ സഹായിക്കുന്നു. Transparency, accountability എന്നിവ ശക്തിപ്പെടുന്നു.

M4.03

Included in 2 hours

## Right to Education Act 2009

RTE provides a legal framework for the right of children to elementary education as prescribed by law.

**മലയാളം സഹായക്കുറിപ്പ്:** RTE Act 2009 കുട്ടികളുടെ elementary education അവകാശത്തിന് നിയമപരമായ ചട്ടക്കൂട് നൽകുന്നു.

**Series-test focus:** 73rd versus 74th Amendment, constitutional versus statutory body, functions of Election Commission/NHRC/Lok Ayukta, RTI 2005 and RTE 2009.

### FINAL REVISION SHEET

## One-page memory map

### Module 1

- Definition and significance
- 1909, 1919, 1935, 1947
- Preamble values
- Basic structure
- Salient features

### Module 2

- Part III: Articles 12–35
- Six classes of rights
- Part IV: DPSP
- Part IVA: Article 51A
- Rights vs DPSP

## Module 3

- Legislature makes laws
- Executive implements laws
- Judiciary interprets laws
- Union and State levels
- Judicial Review

## Module 4

- 73rd: rural
- 74th: urban
- Election Commission
- NHRC and Lok Ayukta
- RTI 2005, RTE 2009

**Malayalam last-day cue:** ചരിത്രം → മൂല്യങ്ങൾ → അവകാശങ്ങൾ/കടമകൾ → മൂന്ന് ഭരണഘടകങ്ങൾ → local government → public bodies → RTI/RTE എന്ന ക്രമത്തിൽ പാഠം ആവർത്തിക്കുക.

## Likely 1-mark areas

- Define Constitution.
- Name Preamble values.
- State Article range of Part III.
- What is Article 51A?
- Name three organs of government.
- Which amendment relates to Panchayat Raj?

## Likely short answers

- Significance of Constitution.
- Rights versus DPSP.
- Role of Speaker.
- Judicial Review.
- Constitutional versus statutory body.
- Purpose of RTI and RTE.

## Likely long answers

- Evolution and salient features.
- Classification of Fundamental Rights.
- Union/State Legislature and Executive.
- Supreme Court, High Court and independence.

**MODEL QUESTION PAPER WITH COMPLETE ANSWERS**

# INDIAN CONSTITUTION • Practice Model • Maximum Marks: 75 • Time: 3 Hours

This is a fresh practice paper prepared from the syllabus topics. It is not an official question paper.

## PART A — Answer all questions. Each carries 1 mark. $[5 \times 1 = 5]$

1. Define Constitution.
2. Name any two values stated in the Preamble.
3. In which Part of the Constitution are Fundamental Duties placed?
4. Name the three organs of government.
5. Which constitutional amendment is associated with urban local self-government?

## PART B — Answer any five. Each carries 8 marks. $[5 \times 8 = 40]$

1. Explain the significance of a Constitution and outline the stages 1909, 1919, 1935 and 1947.
2. Explain the Preamble values and salient features of the Indian Constitution.
3. Classify Fundamental Rights and write the corresponding Article ranges.
4. Compare Fundamental Rights and Directive Principles of State Policy.
5. Explain the composition and functions of the Union Parliament and State Legislature.
6. Explain the Union and State Executive.
7. Distinguish constitutional and statutory bodies. Add notes on Election Commission, NHRC and Lok Ayukta.

## PART C — Answer any two. Each carries 15 marks. $[2 \times 15 = 30]$

1. Explain Legislature, Executive and Judiciary at Union and State levels, including Judicial Review and independence of Judiciary.
2. Explain Fundamental Rights, DPSP and Fundamental Duties as the constitutional framework of responsible citizenship.
3. Explain local self-government under the 73rd and 74th Amendments, and discuss RTI Act 2005 and RTE Act 2009.

**COMPLETE ANSWER KEY**

## Part A answers

| No | Answer                                                                                                                                                                                    |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| .  |                                                                                                                                                                                           |
| 1  | A Constitution is the supreme framework of rules and principles that establishes government, distributes and limits power, and regulates the relationship between the State and citizens. |
| 2  | Any two: Justice, Liberty, Equality, Fraternity.                                                                                                                                          |
| 3  | Part IVA, Article 51A.                                                                                                                                                                    |
| 4  | Legislature, Executive and Judiciary.                                                                                                                                                     |
| 5  | The 74th Constitutional Amendment.                                                                                                                                                        |

## Part B full answers

### B1. Significance and evolution

Definition: The Constitution is the supreme framework of government.

Significance:

1. Creates the organs and institutions of government.
2. Distributes powers among institutions and levels of government.
3. Limits public power and promotes accountability.
4. Protects constitutional values and citizens.
5. Provides stability and a lawful method of change.

Evolutional outline:

- 1909 — an early constitutional reform stage listed in the syllabus.
- 1919 — a further stage in representative and administrative development.
- 1935 — a major pre-Constitution framework influencing governmental structure.
- 1947 — Indian Independence Act and the transition to independent government.

Conclusion: These stages show a gradual movement from colonial administration to independent constitutional governance.

## B2. Preamble and salient features

The Preamble expresses the Constitution's source, nature, objectives and guiding values.

Core values:

1. Justice — social, economic and political fairness.
2. Liberty — freedom of thought, expression, belief, faith and worship within constitutional limits.
3. Equality — equal status and opportunity.
4. Fraternity — unity, dignity and common belonging.

Salient features:

- Written and detailed Constitution.
- Combination of rigidity and flexibility.
- Bicameral Union Legislature.
- Federal structure with unitary features.
- Integrated Judiciary.
- Single citizenship.
- Emergency provisions.

Basic-structure idea: amendment power cannot destroy the Constitution's essential identity.

Conclusion: The Preamble supplies the values, while the salient features show the working design of the Constitution.

## B3. Classification of Fundamental Rights

Part III extends from Articles 12 to 35. The six principal classes are:

1. Right to Equality — Articles 14 to 18.
2. Right to Freedom — Articles 19 to 22.
3. Right against Exploitation — Articles 23 and 24.
4. Right to Freedom of Religion — Articles 25 to 28.
5. Cultural and Educational Rights — Articles 29 and 30.
6. Right to Constitutional Remedies — Article 32.

Fundamental Rights are enforceable through courts and protect freedom, equality and dignity.

## B4. Fundamental Rights versus DPSP

Fundamental Rights:

- Located in Part III.
- Protect individual freedom, equality and dignity.
- Enforceable through courts.
- Operate as legal guarantees.

DPSP:

- Located in Part IV.
- Guide the State in social and economic policy.
- Not directly enforceable through courts.
- Operate as principles for governance and legislation.

Relationship: Rights protect liberty; DPSP guides welfare-oriented governance. Constitutional balance requires attention to both.

## B5. Union Parliament and State Legislature

Union Parliament:

1. Lok Sabha — House of the People; directly represents citizens.
2. Rajya Sabha — Council of States; represents States.
3. Main functions — law-making, financial control, discussion of public policy and accountability of the Executive.
4. Speaker — presides over Lok Sabha, regulates proceedings and maintains order.

State Legislature:

1. Legislative Assembly is the principal elected House.
2. Legislative Council exists where constitutionally provided.
3. Functions include State law-making, financial approval and oversight of the State Executive.

Conclusion: The Legislature represents the people and States and converts public policy into law.

## B6. Union and State Executive

Union Executive:

- President — constitutional head of the Union.
- Vice-President — constitutional office with the Rajya Sabha role.
- Prime Minister and Council of Ministers — real executive leadership, policy direction and administration.

State Executive:

- Governor — constitutional head of the State.
- Chief Minister and Council of Ministers — real executive leadership and State administration.

In the parliamentary system, the Council of Ministers exercises executive leadership while remaining responsible through the constitutional framework.



## B7: Constitutional and statutory bodies

A constitutional body is created directly by the Constitution. A statutory body is created by legislation.

Election Commission:

- Constitutional body.
- Administers and safeguards the electoral process.

National Human Rights Commission:

- Statutory body.
- Promotes and protects human-rights concerns within its legal mandate.

Lok Ayukta:

- Statutory institution under applicable law.
- Examines complaints relating to public administration and corruption.

These bodies influence citizens through elections, rights protection and accountability mechanisms.

## Part C full answers

### C1. Three organs of government

Introduction: Constitutional government distributes major functions among Legislature, Executive and Judiciary.

A. Legislature

- Makes laws and represents citizens and States.
- Union: Lok Sabha, Rajya Sabha and the parliamentary structure.
- State: Legislative Assembly and, where applicable, Legislative Council.
- Functions: law-making, financial control, debate and executive accountability.

B. Executive

- Implements laws and administers public policy.
- Union: President, Vice-President, Prime Minister and Council of Ministers.
- State: Governor, Chief Minister and Council of Ministers.
- The constitutional heads function within the parliamentary system; political executive leadership is exercised by the respective Councils of Ministers.

C. Judiciary

- Interprets law and resolves disputes.
- Supreme Court is the highest court; High Courts operate at State level.
- Judicial Review enables courts to test laws and executive action against the Constitution.
- Independence of Judiciary protects impartiality, rights and rule of law.

Conclusion: Functional separation with constitutional checks prevents concentration of power and supports accountable governance.

Introduction: Responsible citizenship combines protected rights, welfare-oriented State policy and citizen duties.

Fundamental Rights:

- Part III, Articles 12–35.
- Six classes: Equality, Freedom, against Exploitation, Freedom of Religion, Cultural and Educational Rights, Constitutional Remedies.
- Enforceable through courts.

Directive Principles of State Policy:

- Part IV.
- Guide the State toward social and economic justice and good governance.
- Not directly enforceable by courts.

Fundamental Duties:

- Part IVA, Article 51A.
- Require respect for the Constitution and national symbols, unity, harmony, environment, scientific temper, public property, excellence and educational responsibility.

Comparison and relationship:

- Rights protect the citizen.
- DPSP guides the State.
- Duties guide citizen conduct.

Conclusion: Together they form a balanced constitutional framework of liberty, welfare and responsibility.

### C3: Local self-government, RTI and RTE

Local self-government brings democracy and administration closer to the people.

73rd Amendment:

- Relates to Panchayat Raj institutions in rural areas.
- Supports local participation and rural administration.

74th Amendment:

- Relates to Nagarapalika / municipal institutions in urban areas.
- Supports urban local administration and participation.

RTI Act 2005:

- Enables citizens to seek information from public authorities according to law.
- Promotes transparency and accountability.

RTE Act 2009:

- Gives a legal framework for children's right to elementary education as prescribed by law.

Citizen impact:

- Local bodies deliver and coordinate local public services.
- RTI strengthens informed participation.
- RTE advances access to elementary education.

Conclusion: The amendments and Acts deepen democracy by combining local participation, transparent administration and educational rights.

### REFERENCES FROM THE SYLLABUS

# Textbooks, references and online resources

Course 0092

| Code                                                                                                                                                                                                                           | Book / Author                                                                                                                   |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| T1                                                                                                                                                                                                                             | B. L. Fadia, <i>The Constitution of India</i> , Sahitya Bhawan, New Delhi, 2017.                                                |
| T2                                                                                                                                                                                                                             | D. D. Basu, <i>Introduction to Constitution of India</i> , LexisNexis, 23rd edition, 2018.                                      |
| T3                                                                                                                                                                                                                             | M. V. Pylee, <i>India's Constitution</i> , Vikas, New Delhi, 2010.                                                              |
| T4                                                                                                                                                                                                                             | Bidyut Chakravorthy, <i>Indian Government and Politics</i> , Sage, New Delhi, 2008.                                             |
| T5                                                                                                                                                                                                                             | Lakshmi Kanth, <i>Indian Polity</i> , Tata McGraw, 2010.                                                                        |
| R1                                                                                                                                                                                                                             | Rajeev Bhargava, <i>Ethics and Politics of the Indian Constitution</i> , Oxford University Press, New Delhi, 2008.              |
| R2                                                                                                                                                                                                                             | Grenville Austin, <i>Indian Constitution: A Cornerstone of a Nation</i> , OUP, New Delhi, 2008.                                 |
| R3                                                                                                                                                                                                                             | A. G. Noorani, <i>Constitutional and Citizen's Rights</i> , OUP, New Delhi, 2006.                                               |
| R4                                                                                                                                                                                                                             | Henry C. Hart, "Indian Constitution: Political Development and Decay," <i>Asian Survey</i> , Vol. 20, No. 4, 1980, pp. 428–451. |
| <b>Online resources listed in the syllabus:</b> Constitution of India / india.gov.in; analysis of Constituent Assembly Debates / PRS India; "The Fifteen Women That Helped Draft the Indian Constitution" / Feminism in India. |                                                                                                                                 |